

		Defendant has not filed an opposition to the motion. Plaintiff has shown the parties entered a binding settlement agreement which included a stipulation to enter judgment pursuant to Code of Civil Procedure section 664.6 if Defendant did not comply. Defendant failed to make timely payment. Therefore, the motion is granted.
5.	SHANNON VS. BRIONES 2025-01503515	MOTION TO QUASH DISCOVERY SUBPOENA Plaintiff's Motion to Quash Deposition Subpoenas for Employment Records is CONTINUED to 8/11/26 at 9:00 a.m., in Dept. C32. As an initial matter, Defendants' opposition was untimely as it was filed and served on 6/23/26 but due on 6/16/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing Cal. Rules of Court, rule 3.1300, subd. (d)]; <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [citations omitted].) The Court exercises its discretion and will accept the late filed opposition. On 6/24/26, Plaintiff filed a declaration stating the untimely opposition "substantially prejudiced Plaintiff because it effectively eliminated Plaintiff's ability to prepare and file a meaningful reply before the hearing." (ROA 57; Vogt Decl., ¶ 7.) As such, Plaintiff requests the Court not consider the opposition or allow Plaintiff additional time to file a reply. (Vogt Decl., ¶¶ 9-10.) The Court grants Plaintiff's request and continues the motion to allow Plaintiff the additional time to file its Reply. The Reply will be due 5 court days before the hearing. No further briefing other than the Reply is permitted.
6.	KRUPP VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY 2023-01370850	MOTION FOR LEAVE TO FILE CROSS-COMPLAINT Defendant California Automobile Insurance Company ("CAIC") moves for leave to file a cross-complaint against R.S. Builders is GRANTED. CAIC's Request for Judicial Notice of Exhibits 1 and 2 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted "(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. §428.10, subd. (b).)

		“Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (Code Civ. Proc., § 428.50(c).) The proposed cross-complaint asserts causes of action for declaratory relief for implied whole indemnity, implied partial indemnity, and equitable apportionment against R.S. Builders. The proposed cross-complaint is therefore permissive. The claims are related to the incident alleged by Plaintiffs in their Third Amended Complaint. Plaintiffs allege the property suffered a catastrophic fire on December 13, 2022, that the loss was reported to CAIC, and that CAIC wrongfully denied coverage and purported to rescind the Policy. In a separate complaint filed against R.S. Builders, Plaintiffs allege that R.S. Builders’ work involving pipe sweating during the remodel caused the fire. (RJN, Ex. 2.) Therefore, the claims against CAIC and the proposed claims against R.S. Builders are related in that they share the same loss event, same property, and same alleged property damage. Given that CAIC intends to pursue indemnity claims against R.S. Builders, it would be an efficient use of judicial and party resources to have both complaints litigated in the same case. Further, trial is set for October 23, 2026, and Plaintiffs recently filed their Third Amended Complaint on June 16, 2016, thus Plaintiffs will not be prejudiced. Accordingly, the court finds that interests of justice weigh in favor of granting the motion for leave to file a cross-complaint against R.S. Builders. CAIC is to file the proposed Cross-Complaint, attached to the Motion, without any changes, modifications, or alterations, within 7 days of the date of the hearing. Moving party is to give notice.
7.	CARNEY VS. E & R CONSTRUCTION, INC. 2022-01279849	MOTION FOR LEAVE TO AMEND JUDGMENT Judgment creditor William J. Carney, Jr.’s Motion to Amend Judgment to Add Donna Michele Cortés aka Michele Bustamante-Cortés as a Judgment Debtor is DENIED. On 4/10/25, the Court entered judgment in favor of Plaintiff and against E&R in the amount of \$2,586,000.00 with interest at 10%